

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On June 23, 2023, a complaint was filed with entry registration number ***REGISTRO.1 before the Spanish Agency for Data Protection against SEUR GEOPOST, S.L. with NIF B82516600 (hereinafter, SEUR GEOPOST). The reasons for the complaint are as follows:

The complainant states that they were the recipient of a package whose delivery management was the responsibility of the complained entity and indicates that it is marked as delivered to a third party, unknown to the complainant, without the complainant having authorized the delivery to third parties, being unaware of the identity of the recipient, to whom their data has been exposed and the package delivered, without it being delivered to the complainant's address.

Along with the complaint, a copy of emails exchanged with the sending entity of the package is provided, where the delivery note issued by the complained entity is included, showing a person different from the complainant as the recipient.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to SEUR GEOPOST for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on July 11, 2023, as noted in the acknowledgment of receipt in the file.

On July 24, 2023, a response was received at this Agency indicating:

"FIRST.- The decision made regarding this complaint and a report on the causes that led to the incident that originated the complaint.

After receiving this information request, SEUR has proceeded to investigate the events that occurred and has verified the following:

- That a SEUR delivery person went to the complainant's home to make a delivery.
- That the complainant was absent at the time of delivery.
- That consequently, the delivery person delivered the complainant's package to a neighbor.

Thus, after analyzing the facts, we consider that the incident occurred as a result of an error by the delivery person, for not having followed SEUR's internal protocols for the correct delivery and collection of goods.

In this regard, SEUR informs the AEPD that, in compliance with the obligations of the applicable regulations of its transport activity, it has implemented the corresponding procedures and corporate manuals, which determine the guidelines to follow for the correct delivery or collection of goods.

Specifically, SEUR has a manual with the operational procedures that delivery persons must follow called "Delivery Person Operational Manual," a document that is provided to them at the time of hiring or the start of service provision with SEUR. According to this manual, when a recipient is absent from home, the delivery person will notify the absence on the PDA, automatically triggering a call to the recipient to agree on a new delivery method, among which is the authorized delivery to a third party. Annex I includes screenshots from the manual specifying the obligations of delivery persons for the correct delivery or collection of goods.

Therefore, through that call, the recipient is given the opportunity to authorize the delivery person to leave the goods with third parties such as a neighbor, the concierge, etc. If the recipient authorizes this, the delivery person will mark this option on the PDA by pressing the button "Authorized delivery at another address." All this operation is part of the training provided to delivery persons to comply with SEUR's internal protocols. Annex II includes an excerpt from the training in this regard.

Additionally, SEUR provides delivery persons with other periodic training on the importance of properly using and diligently handling the personal data they manage daily from senders, recipients, and/or authorized persons. Specifically, one of the latest training actions consisted of disseminating a video

titled "Best Practices in Privacy."

Likewise, as part of this periodic training, a training video titled "Delivery Procedure: Absent Customer" has been developed to reinforce awareness of the protocol to follow in these cases. Annex III includes an excerpt from this training.

For all these reasons, as previously mentioned, we confirm that the incident occurred due to a one-time malpractice by the delivery person for not following the company's internal protocols, and therefore following a practice not authorized by SEUR.

SECOND.- Report on the measures taken to prevent similar incidents, implementation dates, and controls carried out to verify their effectiveness.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/5

As described in the previous section, SEUR has implemented adequate measures in the various delivery procedures and manuals to prevent the reported incidents from occurring again.

However, as a consequence of the incident that occurred, SEUR has communicated to all delivery personnel the necessity of complying with the established protocol for delivery in case of absence at the residence, emphasizing the obligation to agree on a new method of delivery and, if applicable, to request authorization for delivery to third parties.

Finally, we want to reiterate our commitment to ensuring the security and confidentiality of the data we manage daily, as well as to comply in a timely manner with the provision of the transportation service contracted by our clients.

THIRD: On August 18, 2023, the Director of this Agency issued a decision of inadmissibility regarding the claim. The claiming party filed a motion for reconsideration against this act, and on December 18, 2023, a resolution was issued accepting the motion for reconsideration, in which it was agreed to admit the claim for processing in accordance with the provisions of Article 65 of the LOPDGDD.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, in accordance with the provisions of Article 4.1 of the GDPR, it is established that there is a processing of personal data, since SEUR GEOPOST carries out, among other processes, the retention and use of the following personal data of individuals, such as: name, surname, and address of its clients.

SEUR GEOPOST carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

Article 4, section 12 of the GDPR broadly defines "personal data security breaches" (hereinafter personal data breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of personal data transmitted, stored, or otherwise processed, or unauthorized

communication or access to such data."

III

Adoption of Measures for Compliance with Regulations

SEUR GEOPOST states in the document submitted to the AEPD on July 24, 2023, that "...SEUR has implemented adequate measures in the various delivery procedures and manuals to prevent the reported incidents from occurring again.

However, as a consequence of the incident that occurred, SEUR has communicated to all delivery personnel the necessity of complying with the established protocol for delivery in case of absence at the residence, emphasizing the obligation to agree on a new method of delivery and, if applicable, to request authorization for delivery to third parties..."

In Annex II of the documentation provided by SEUR GEOPOST, it is verified that, in the training provided to its staff, the modalities of delivery to the client are included, along with a reminder to obtain client consent for delivery to a different address.

Consequently, it is evident that SEUR GEOPOST has adopted additional measures subsequent to the filing of the claim; therefore, the application of Article 65.6 LOPDGDD is warranted, which expressly states that:

"(...) 6. After the admission for processing, if the data controller or processor demonstrates having adopted measures for compliance with the applicable regulations, the Spanish Data Protection Agency may resolve to archive the claim when specific circumstances advise the adoption of other more moderate or alternative solutions to corrective action, provided that no prior investigative actions or any of the procedures regulated in this organic law have been initiated (...)."

IV

Conclusion

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/5

Therefore, based on the indications in the previous paragraphs, and given that according to Article 65.6 of the LOPDGDD, circumstances exist that advise the adoption of alternative solutions to corrective action, the filing of the complaint is appropriate.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection **RESOLVES:**

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to SEUR GEOPOST, S.L. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es